

The Satellite and Cable Directive (frequently shortened to SatCab Directive), formally the Council Directive 93/83/EEC of 27 September 1993 on the coordination of certain rules concerning copyright and rights related to copyright applicable to satellite broadcasting and cable retransmission, is a European Union directive that governs the application of copyright and related rights to satellite and cable television in the European Union. It was made under the internal market provisions of the Treaty of Rome.

Satellite broadcasting

An author has the exclusive right to authorise or prohibit the broadcasting of his or her works by satellite (Art. 2). This right may only be subject to a compulsory licensing scheme when the satellite broadcast is simultaneous with a terrestrial broadcast [Art. 3(2)]. Satellite broadcasting is assimilated to terrestrial broadcasting for the purposes of related rights (rights of performers, phonogram producers and broadcasting organisations) (Art. 4): the protection of these rights is governed by Directive 92/100/EEC.

Cable retransmission

The main effect of the Directive is to stipulate that cable retransmission must be on the basis of contractual, not statutory, licences with copyright holders, although existing statutory licence schemes were permitted to remain in force until the end of 1997 (Art. 8). These licences may only be granted or refused by collecting societies [Art. 9(1)], which effectively makes such societies compulsory: a collecting society may be deemed to be mandated to manage the cable retransmission rights of a copyright holder in the absence of any expressive agreement [Art. 9(2)]. Broadcasting organisations are free to

exercise their own related rights

to license or prohibit the cable retransmission of their own broadcasts (Art. 10). The Directive also provides for mediation

in disputes between cable operators and collecting societies (Art. 11) and for measures to prevent

abuse of monopoly powers (Art. 12).

Implementation

See also

Copyright law of the European Union

Broadcast piracy

Notes and references

Literature

External links

Text of the Directive

Report from the Commission on the coordination of certain rules concerning copyright and rights related to copyright applicable to satellite broadcasting and cable retransmission, 26 July 2002.